

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Whitney Beber	Team: Squad #06	CCRB Case #: 201807727	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 08/17/2018 2:26 AM	Location of Incident: 226 West 113th Street; en route to the 28th Precinct stationhouse	18 Mo. SOL 2/17/2020	Precinct: 28		
Date/Time CV Reported Tue, 09/18/2018 4:39 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 09/18/2018 4:39 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Jose Hernandez	4180	936756	028 PCT
2. POM Fortune Douglas	15959	959608	028 PCT
3. POM Germaine Hall	16379	957653	028 PCT
4. An officer			028 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Yeraldy Bonifacio	15500	952482	028 PCT
2. LT Senta Caleb	00000	934563	028 PCT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Abuse: An officer threatened § 87(2)(b) with the use of force.	A . Officer(s) Unidentified
B . SGT Jose Hernandez	Abuse: At 226 West 113th Street in Manhattan, Sergeant Jose Hernandez threatened § 87(2)(b) with the use of force.	B . Exonerated
C . POM Fortune Douglas	Abuse: En route to the 28th Precinct stationhouse, Police Officer Fortune Douglas did not obtain medical treatment for § 87(2)(b)	C . Unsubstantiated
D . POM Germaine Hall	Abuse: En route to the 28th Precinct stationhouse, Police Officer Germaine Hall did not obtain medical treatment for § 87(2)(b)	D . Unsubstantiated

Case Summary

§ 87(2)(b) filed the following complaint in person on September 18, 2018, at the Civilian Complaint Review Board (CCRB). The CCRB received the complaint on September 18, 2018.

On August 17, 2018, at 2:26 a.m., § 87(2)(b) was outside with approximately 30 other people cooking and talking at 226 West 113th Street in Manhattan when he saw Police Officer Yeraldy Bonifacio, Sergeant Jose Hernandez and Lieutenant Senta Caleb of the 28th Precinct approach. § 87(2)(b) ran past the officers. An officer allegedly threatened to shoot § 87(2)(b) (**Allegation A- Abuse of Authority, officer unidentified**). Sgt. Hernandez told § 87(2)(b) to stop or that he would get tasered (**Allegation B-Abuse of Authority, exonerated**). The officers chased § 87(2)(b) surrendered and put his hands up. Sgt. Hernandez pointed his taser at § 87(2)(b) (within **Allegation B**). § 87(2)(b) was transported to the 28th Precinct stationhouse by Police Officer Fortune Douglas and Police Officer Germaine Hall of the 28th Precinct. While en route to the precinct stationhouse, § 87(2)(b) requested medical attention. § 87(2)(b) never received any medical attention (**Allegations C and D-Abuse of Authority, unsubstantiated**). § 87(2)(b) was arrested and released with C summons for § 87(2)(b) (BR 01).

No video footage was available for this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: At 226 West 113th Street in Manhattan, an officer threatened § 87(2)(b) with the use of force.

It is undisputed that on August 17, 2018, at 2:26am, § 87(2)(b) was outside at 226 West 113th Street in Manhattan with a group of other individuals. Officers approached the group for gambling, § 87(2)(b) and other males ran from the officers and the officers chased § 87(2)(b).

§ 87(2)(b) admitted that upon seeing the officers, he ran and then heard a voice yell, “I’m going to shoot you.” § 87(2)(b) could not provide a description of the officer who made that statement as he did not see the officer. § 87(2)(b) initially reported that the officers had their guns drawn but in his sworn statement he did not make this allegation. § 87(2)(g) No witness testimony was obtained because § 87(2)(b) did not want to provide the information of the people he saw witness the incident without their permission.

Sgt. Hernandez and Lt. Caleb denied that they threatened to shoot § 87(2)(b) PO Bonifacio and Lt. Caleb did not hear another officer threaten to shoot § 87(2)(b).

While § 87(2)(b) alleged that an officer threatened to shoot him, Sgt. Hernandez and Lt. Caleb denied having threatened to shoot § 87(2)(b) and PO Bonifacio denied ever threatening to shoot § 87(2)(b).

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **officer unidentified**.

Allegation (B) Abuse of Authority: At 226 West 113th Street in Manhattan, Sergeant Jose Hernandez threatened § 87(2)(b) with the use of force.

Sergeant Hernandez and § 87(2)(b) are consistent that Sgt. Hernandez told § 87(2)(b) that he would be tasered.

While outside of 226 West 113th Street in Manhattan, § 87(2)(b) was at a cook out when he observed PO Bonifacio, Sgt. Hernandez and Lt. Caleb approach. § 87(2)(b) denied he was gambling. When he ran past the officers he also heard a voice yell, “I’m going to tase you.” § 87(2)(b) could not identify the voice of the officer who made that statement.

No witness testimony was obtained because § 87(2)(b) did not want to provide the information of the people he saw witness the incident without their permission.

Sgt. Hernandez stated that § 87(2)(b) was solely stopped for gambling. He did tell § 87(2)(b) “You need to stop or you are going to get tasered,” more than once to gain compliance. Sgt. Hernandez was approximately 12-15 feet away from § 87(2)(b) when he made this statement. He did not remember how many times he made this statement. § 87(2)(b) did not respond in any way to Sgt. Hernandez saying that he would taser him, but he continued to run. Sgt. Hernandez took out his taser while chasing § 87(2)(b). It took a “little bit of time” after Sgt. Hernandez took out his taser for § 87(2)(b) to stop running. § 87(2)(b) eventually stopped running. In his first statement, Sgt. Hernandez stated that he pointed his taser at § 87(2)(b) when § 87(2)(b) stopped running. Sgt. Hernandez then holstered his taser. In a second interview, Sgt. Hernandez stated that he did not remember when he pointed his taser at § 87(2)(b). The only reason Sgt. Hernandez pointed his taser at § 87(2)(b) was because it was in his hand.

Lt. Caleb was consistent with Sgt. Hernandez that he pointed his taser at § 87(2)(b). She did not know at what point during the pursuit Sgt. Hernandez pointed his taser at § 87(2)(b) or when he holstered the taser. § 87(2)(b) ran for approximately 30-45 seconds before he stopped and sat down on the ground. PO Bonifacio did not remember if he saw Sgt. Hernandez with his taser out and he did not hear any officer say they would taser § 87(2)(b).

§ 87(2)(b) was issued C summons #§ 87(2)(b) by PO Bonifacio for § 87(2)(b) (BR 01).

Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In determining whether the use of force is reasonable, officers should consider the nature and severity of the crime/circumstances, the actions taken by the subject, whether the subject is actively resisting custody, and whether the subject is attempting to evade arrest by flight (Patrol Guide Section 221-01) (BR 02).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b), it is therefore recommended that **Allegation B** be **exonerated**.

Allegation (C) Abuse of Authority: En route to the 28th Precinct stationhouse, Police Officer Germaine Hall did not obtain medical treatment for § 87(2)(b)

Allegation (D) Abuse of Authority: En route to the 28th Precinct stationhouse, Police Officer Fortune Douglas did not obtain medical treatment for § 87(2)(b)

While § 87(2)(b) was being transported to the 28th Precinct in a police vehicle with two uniformed officers, § 87(2)(b) told the officers that he could not breathe due to running from the officers. During follow-up questions to § 87(2)(b)'s interview, he stated that he requested medical treatment from the two officers who transported him. He could not describe those officers. He did not request medical treatment from any other officers.

Lt. Caleb requested a marked police vehicle to transport § 87(2)(b) to the 28th Precinct stationhouse. Two male officers from the 28th Precinct responded to transport § 87(2)(b) to the stationhouse in a marked vehicle. Lt. Caleb, Sgt. Hernandez nor PO Bonifacio remembered who transported § 87(2)(b) to the stationhouse.

An AVL search was requested from the 28th Precinct for vehicles that were in the vicinity of 226 West 113th Street at approximately 2:26 a.m. on August 17, 2018. Three of the results were from the 28th Precinct. Of these, only two units consisted of two police officers. Their memo book entries were requested. Of the four officers, two officers, Police Officer Fortune Douglas and Police Officer Germaine Hall of the 28th Precinct, were within six minutes of the incident location at 2:20 a.m., making them the closest unit to the incident location, nearest the time when this incident took place.

PO Douglas and PO Hall's memo book entries both noted that they transported a black male and a male respectively, to the 28th Precinct stationhouse at 2:26 a.m. (BR 03). During their interviews, neither PO Douglas nor PO Hall had an independent recollection of this incident.

§ 87(2)(g)

§ 87(2)(b). It is therefore recommended that **Allegations C and D** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to two CCRB complaints and has been named as victim in five allegations (BR 04).
 - § 87(2)(b)
- Sgt. Hernandez has been a member of service for 14 years and has been a subject in five CCRB complaints and nine allegations, none of which have been substantiated. § 87(2)(g)
- PO Hall has been a member of service for four years and he has been as subject in two CCRB complaints and two allegations, of which none were substantiated.
- PO Douglas has been a member of service for three years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- As of August 15, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this complaint (BR06).

Squad No.: _____

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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